

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Probate Notes

2025PRTR039328: IN RE THE ROBERTA ROWE LOPEZ TRUST DATED 01/20/1993

09/16/2026 in Department J6

**Hearing on Petition Instructing Trustee Whether or Not to Defend the Trust Contest of
Terry Lopez**

The court agrees with Mr. Loebl in that the beneficiaries themselves are represented by counsel and are actively litigating the dispute, there is little benefit to the Trust Estate from requiring the Trustee to incur additional fees and costs to advocate for one side of the controversy.

The court intends to grant the petition for instructions and order: That the Trustee shall remain neutral in the pending trust litigation filed in this probate court; That the Trustee has no duty to defend the Sixth and Seventh Amendments; That the Trustee may refrain from expending trust assets to advocate for either side; and that the Trustee shall not be subject to surcharge for remaining neutral pursuant to the court's instructions.